



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd, Planner II
Subject: UDC-22-00267 – WYDOT 201 Agreement Exception Extension
Date: September 12, 2022

Background:

The item for consideration is an exception to Cheyenne Water and Sewer District intergovernmental agreement (201 IGA) to implement the 1982 Wastewater Facilities Master Plan. This is approved by resolution.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral: September 12, 2022
- Public Services Committee: September 20, 2022
- Final Consideration: September 26, 2022
-

Planning Commission Recommendation:

The Planning Commission heard this item at their September 6, 2022, meeting and voted to recommend the Governing Body approve this exception.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Resolution
2. Planning Commission Staff Report

RESOLUTION NO. _____

ENTITLED: “A RESOLUTION EXTENDING CITY APPROVAL OF AN EXCEPTION TO THE ‘201 AGREEMENT’ FOR THE OWNER OF THE PROPERTY LOCATED AT 4120 AND 4121 WEST 5TH STREET TO ALLOW THE CONTINUATION OF ON-SITE SEPTIC SYSTEMS LOCATED WITHIN THE CITY AND IN UNINCORPORATED LARAMIE COUNTY.”

WHEREAS, on April 25, 1983, the City of Cheyenne (“City”), the County of Laramie (“County”), the City of Cheyenne Board of Public Utilities (“BOPU”), and the South Cheyenne Water and Sewer District (“District”) entered into an agreement entitled “Memorandum of Agreement: Intergovernmental Contract Agreeing to Participate in the Implementation of the Findings of the 201 Facilities Plan Final Report for the City of Cheyenne, the South Cheyenne Water and Sewer District and Laramie County;” and

WHEREAS, the April 25, 1983 agreement is commonly referred to as the “201 Agreement;” and

WHEREAS, the 201 Agreement defines the respective responsibilities and obligations of the signatory governmental entities with respect to the implementation of the “201 Facilities Plan” that was created in response to the requirements of Section 201 of the Federal Water Pollution Control Act; and

WHEREAS, one of the principal purposes of the 201 Agreement is to ensure that wastewater (sewage) generated in the areas immediately surrounding the corporate limits of the City of Cheyenne would preferentially be disposed of through the sanitary sewer systems operated by BOPU; and

WHEREAS, the 201 Agreement defines the “service area boundary” sometimes referred to as the “sewerable boundary” or “201 Area” as the area that “can be provided with Municipal Sewage Treatment Services via gravity flow;” and

WHEREAS, on March 27, 2012 the City of Cheyenne and Profile Properties, LLC entered into a Development Agreement (City Contract 5817) regarding the approval of an exception to the 201 Agreement for on-site septic systems for the subject properties; and

WHEREAS, City Contract 5817 had a sunset clause terminating City approval in ten (10) years or upon the re-alignment and re-construction of the I-80/I-25 interchange, whichever occurred first; and

WHEREAS, City Contract 5817 allowed for the extension of the approval and that said extension would not be unreasonably withheld; and

WHEREAS, City Contract 5817 allowed for the approval to be passed to all persons or entities who have or acquire ownership interest in the subject property; and

WHEREAS, the Wyoming Department of Transportation (“WYDOT”) is the current owner of the subject property; and

WHEREAS, the re-alignment and re-construction of the I-80/I-25 interchange has not occurred and ten (10) years have passed since City Contract 5817 was entered into; and

WHEREAS, WYDOT is requesting an extension of City approval of the 201 Exception; and

WHEREAS, on September 6, 2022, the City Planning Commission recommended that the Governing Body grant the extension of the City approval of the 201 Exception.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, THAT:

The City of Cheyenne hereby consents to extend City Contract 5817 for a duration of ten (10) additional years, for a total of twenty (20) years from the original date which City Contract 5817 was entered into. No other amendments to City Contract 5817 are proposed or approved by this extension.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF _____, 2022.

PATRICK COLLINS, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

CITY OF CHEYENNE PLANNING COMMISSION SEPTEMBER 6, 2022 STAFF REPORT

FILE: UDC-22-00267: WYDOT facility - 201 Exception (extension)

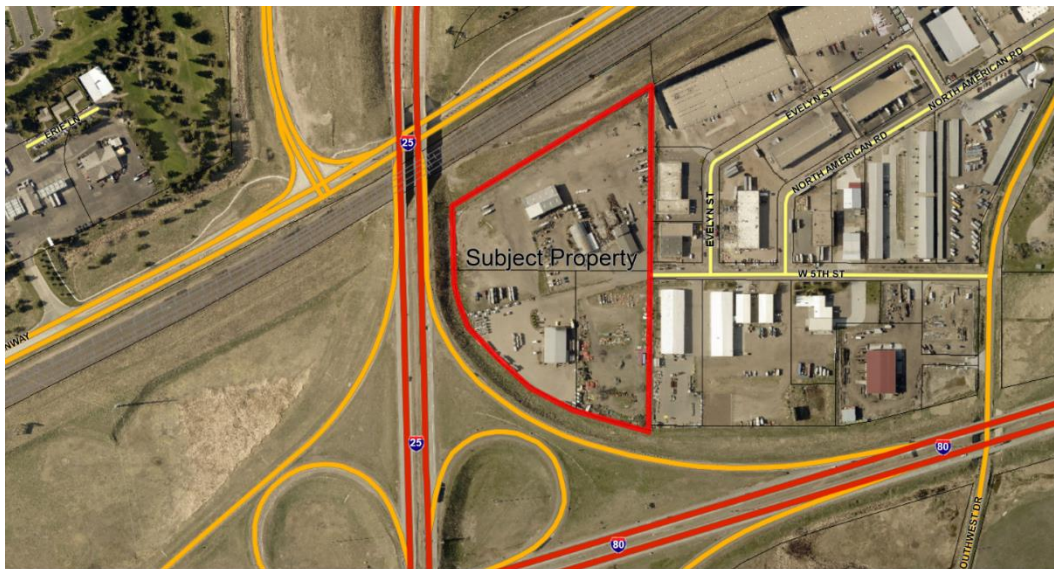
REQUEST: Extension of an approved 201 Exception on parcels of land slated to be modified by the development of the I-25/I-80 interchange.

LOCATION: 4120 W 5th Street (unplatted) and 4121 W 5th Street (Lots 1 and 2, Block 1, Worldwide Subdivision)

APPLICANT: Jonathan Clark - WYDOT

ZONING: LI Light Industrial

CASE PLANNER: Seth Lloyd, Planner II



RECOMMENDED MOTION:

Move to recommend the City Council **approve** the continuation of the exception to the 201 Facilities Plan requirement for City sewer service, subject to Staff's recommended conditions.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- Cheyenne Municipal Code Chapter 1.16 (Annexation and Infrastructure Improvements)
- Cheyenne Municipal Code Chapter 13.12 (Sewer System)
- 201 Intergovernmental Agreement to participate in the implementation of the 201 Facilities Plan Final Report for the City of Cheyenne, the South Cheyenne Water and Sewer District, and Laramie County (1983) (IGA)
- 201 Facilities Plan Final Report (1982)
- City Contract 5817
- Plan Cheyenne

The request for an exception must be submitted to the Planning Commission for review. After Commission review, the exception would be approved or denied by the City Council. If the property seeking the exception is outside the Corporate Limits of the City and inside the 201 Service Area Boundary, then County Commissioner approval is also required.

BACKGROUND:

In 1982 the City, County, and south Cheyenne Water and Sewer District executed an intergovernmental agreement to implement the 1982 Wastewater Facilities Master Plan. The plan and the IGA were intended to satisfy the Federal Clean Water Act requirements and to protect the safety and quality of the region's groundwater from pollution, specifically from septic system failures.

The IGA requires connection to sewer systems for development of properties lying within the Urban Service Area identified in the Plan. The Facilities Plan defines the Urban Service Area as the area where "Municipal Sewerage Treatment services can be provided via gravity flow" [Section 1.0, Definitions of the IGA]. The IGA further states that the City of Cheyenne is to limit the use of on-site wastewater treatment systems within the Urban Service Area; this would include septic systems and package wastewater treatment plants. The IGA states that the City and County will not approve any development which is inconsistent with the Facility Plan unless granted an exception pursuant to Sections 4.0 to 4.7 of the IGA.

The properties subject to this 201 Exception applied for and received an exception in 2012. The agreement had a sunset clause on the City's approval of 10 years or the re-construction of the interchange (whichever occurred first). WYDOT has acquired the property and rents the facilities thereon out to third parties. As the sunset clause from the original City approval has been reached, an extension of the approval is needed to allow the properties to continue to be used without connecting to sewer. According to the original agreement, extension is not be unreasonably withheld.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Mixed-use Commercial	LI Light Industrial	Light industrial
North	Mixed-use Commercial	LI, CB Community Business	Railroad, hotel
South	Open Space and Parks	Overland Trails PUD	I-25/I-80 Interchange, Vacant/Undeveloped
East	Mixed-use Commercial	LI	Light industrial
West	Mixed-use Commercial	LI	I-25/I-80 Interchange, Vacant/Undeveloped

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to approve the exception, the Commission must make the following findings per Sections 4.0 to 4.7 of the 201 IGA. A detailed analysis is below:

Section 4.0: EXCEPTIONS FOR DEVELOPMENT THAT IS NOT CONSISTENT WITH THE PROPOSED FACILITY PLAN:***4.1 Exceptions can be granted for the following reasons:***

(a) The proposed exception conforms with the criteria for exceptions in The City of Cheyenne Annexation Policies.

(b) The exception can be shown not to be detrimental to the public health, safety and welfare [sic].

(c) The exception will alleviate a clearly demonstrable hardship and compliance with the Facility Plan will exacerbate this hardship. A hardship will be determined based upon a cost/effectiveness study of sewer service provision to the property seeking the exception.

(d) The exception demonstrates substantial compliance with the proposed Facility Plan.

Reason (a): This property is annexed to the City and has sanitary sewer nearby. Off-site sanitary sewer main extension requirements are applicable, and wouldn't require a significant expansion; however the site is slated to be significantly modified by the reconstruction of the I-25/I-80 interchange, and as such, the utility extension may not service any structures in the near future.

Reason (b): The facility proposed does discharge into the surrounding environment, however each property has at least 5 acres, and as such, can meet the typical standards for new construction septic systems.

Reason (c): The property has sanitary sewer readily available (within a few hundred feet of the property line). The property is anticipated to be used for the rebuilding of the I-25/I-80 interchange, and, as such, extension of permanent infrastructure to what effectively a temporary facility is a hardship. This is what was determined with the original approval of the exception.

Reason (d): The facility would maintain the principal goal of the IGA – that is to prevent the excessive environmental pollution of the land. In the Cheyenne area, typically a property needs 5 acres for a septic system and leach field, and both of the subject properties have this acreage.

4.2. Exceptions may only be considered if the proposal has been denied due to non-conformance with the proposed Facility Plan.

The applicant applied for a permit to allow a self-contained septic holding tank in 2012. The permit was denied in 2012, after which the applicant was eligible to apply for an exception pursuant to the IGA. The exception request was filed with the Cheyenne-Laramie County Health Department in 2012 and approved for a period of 10 years by the City. It has been 10 years and the interchange has not yet been rebuilt, therefore an extension to the original City approval is requested.

4.3. The request for exception must be submitted to the Planning Commission for review.

This proposal is being submitted to the Planning Commission.

4.4. After Planning Commission review, the exception will be approved or disapproved by:
(a) The City Council if the property seeking exception is within the Corporate Limits; (b) The City Council and County Commissioners if the property seeking exception is outside the Corporate Limits and inside the Service Area Boundary.

The property seeking an exception is within the City limits of the City of Cheyenne, and the exception will be submitted to the City Council after the Planning Commission review.

4.5 (Due to a formatting error in the original Agreement, there is no Section 4.5)

4.6. The replacement of an existing on-site wastewater treatment system on a property that is neither contiguous with the Cheyenne Corporate Limits nor within the DISTRICT's boundaries will not require an exception under this Agreement.

This Section is not applicable to this proposal.

4.7. The installation of a new on-site wastewater system on a single lot within the Service Area Boundary that is not contiguous with the Cheyenne Corporate Limits nor within the DISTRICT's boundaries will not require an exception under this Agreement, provided that the lot meets all the requirements of the Subdivision Regulations and any other requirements of this Agreement and was platted prior to the effective date of this Agreement.

This Section is not applicable to this proposal.

RELEVANT PLANCHEYENNE POLICIES

The following PlanCheyenne policies are related to this project:

Foundation 1—Growing as a Community of Choice
 Policy 1.1.C: Regional Coordination on Land Use and Development Issues.

Foundation 3—Fostering a Vital Economy and Activity Centers
 Policy 3.1.C: Business-Supportive Environment

Foundation 7—Developing in a Fiscally Responsible Way
 Principle 7.1: Our community will coordinate and plan for growth regionally to ensure efficient and cost-effective services and utilities.
 Principle 7.2: The Cheyenne Area will provide adequate public facilities and services for current and future residents in a fiscally responsible manner.

The IGA was created to coordinate regionally on environmental health. The properties have sufficient space for septic systems. Development of infrastructure which will essentially be abandoned in the near future is not the most fiscally responsible way to develop. The exception request **complies** with the goals of PlanCheyenne.

CONCLUSION:

Staff's analysis is that the extension of the 201 exception is appropriate. There appear to be no pressing concerns which would justify withholding the extension of the original approval.

ALTERNATIVES:

1. Recommend the Governing Body approve the exception as submitted by the applicant.
2. Recommend the Governing Body approve the exception subject to Staff's recommended conditions (**Staff Recommendation**).
3. Recommend denial of the exception based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the item until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

The Planning Commission may modify staff's recommended conditions, delete conditions, add conditions, or decide contrary to Staff's recommendation. In the event conditions are modified, the conditions shall relate to applicable review criteria. In the event that the Planning Commission acts contrary to staff's recommendation, the Commission shall cite specific reasons (based on the review criteria) for a recommendation to approve or deny.

STAFF'S RECOMMENDATION:

Staff recommends approval of the extension of the 201 Exception for 4120 W 5th Street (unplatted) and 4121 W 5th Street (Lots 1 and 2, Block 1, Worldwide Subdivision) subject to the following conditions:

1. The extension of the approval shall be good for until the interchange is reconstructed or for a period of 10 years, whichever occurs first.

ATTACHMENTS:

1. Extension Request
2. Original 201 exception agreement (City Contract 5817)



WYOMING Department of Transportation

"Providing a safe, high quality, and efficient transportation system"

5300 Bishop Boulevard, Cheyenne, Wyoming 82009-3340



July 14, 2022

City of Cheyenne
2101 O'Neil Ave
Cheyenne, WY 82001

Project: I806213
Road: I25 & I-80 Interchange

RE: 201 Exception Extension Request for 4120 W 5th Street/4121 W 5th Street

To Whom It May Concern,

The Wyoming Department of Transportation is requesting an extension of the 201 exception drafted under City Contract #5817 dated March 27, 2012. The justification for this request is that this is a temporary solution until the I-80/I-25 interchange project is completed. Since this is a temporary solution a cost estimate of extending services is not being included at this time. The \$600.00 application fee is being processed and will be mailed to the City Treasurer.

Sincerely,

Jonathan Clark
Project Manager

This Development Agreement (hereinafter "Agreement") is made and entered into this 27th day of March, 2012, by the City of Cheyenne, a municipal corporation organized under the laws of the State of Wyoming, 2101 O'Neil Avenue, Cheyenne, Wyoming 82001 ("City") and Profile Properties, LLC, a Wyoming Limited Liability Company, P.O. Box 2836, Cheyenne, Wyoming, 82003-2836, ("Profile") to facilitate the development of certain properties owned by Profile within the corporate boundaries of the City.

Properties covered by this Agreement

Profile is the owner of certain tracts of real property which are legally described below. Parcel A is comprised of approximately 7.00 acres and has already been developed for commercial purposes. Parcel B is comprised of approximately 5.00 acres and is currently being developed for commercial purposes. Parcel C is comprised of approximately 2.00 acres and is currently undeveloped. This Agreement pertains to Parcels A, B, and C.

Parcel A:

13-67: POR SE1/4 SE1/4 SEC 2, LYING SOUTH OF SOUTH RW OF UPRR, DESC AS: BEG AT SOUTHEAST COR OF SEC 2; TH NORTH ALONG EAST LINE OF SEC 2, 649.6' TO A PNT ON SOUTH R/W LINE OF UPRR; TH S 58 DEG 28' W, ALONG SD RW LINE, 1231.8' TO AN INTERSECTION WITH SOUTH LINE OF SD SEC 2; TH S 89 DEG 41' E, ALONG SOUTH LINE OF SD SEC 2, 1049.9' TO THE POB; LESS (1 AC) A POR TO THE ST OF WY.

Parcel B:

13-67: POR OF N1/2 N1/2 NE1/4 NE1/4 SEC 11, LYING S OF UPRR R/W, EXCEPT A POR DESC AS: BEG AT A PNT ON THE NORTH BNDRY OF SD SEC 11, FROM WHICH THE NORTHEAST COR THEREOF BEARS S 89 DEG 40' E, 692.6', SD PNT BEING ON A CIRCULAR CURVE TO THE LEFT, RADIUS 383.46', AND AT WHICH PNT A LINE TANGENT TO SD CURVE BEARS S 1 DEG 21.6' E; TH ALONG SD CURVE TO THE LEFT, THROUGH A CENTRAL ANGLE 39 DEG 05.4', 261.6' TO A PNT ON A COMPOUND CURVE, SD PNT BEING THE BEG OF A CIRCULAR CURVE, RADIUS 860.93', AND AT WHICH PNT A LINE TANGENT TO SD CURVE BEARS S 40 DEG 27' E; TH ALONG SD CURVE THROUGH A CENTRAL ANGLE 8 DEG 34', 128.7' TO ITS INTERSECTION WITH THE SOUTH BNDRY OF THE SD N1/2 N1/2 NE1/4 NE1/4; TH N 89 DEG 40' W, ALONG THE SOUTH BNDRY THEREOF, 810.7' TO THE SOUTHWEST COR OF SD N1/2 N1/2 NE1/4 NE1/4; TH N 0 DEG 24' E, ALONG THE WEST BNDRY OF SD N1/2 N1/2 NE1/4 NE1/4, 162.7' TO ITS INTERSECTION WITH THE SOUTH R/W OF THE UPRR; TH N 58 DEG 29' E, ALONG THE SOUTH R/W LINE THEREOF, 317.0' TO ITS INTERSECTION WITH THE NORTH BNDRY OF SD SEC 11; TH S 89 DEG 40' E, ALONG THE NORTH BNDRY OF THEREOF, 357.3' TO THE POB.

Parcel C:

13-67: A POR OF S1/2 NE1/4 NE1/4 SEC 11, DESC AS: BEG AT THE NORTHEAST COR OF THE S1/2 NE1/4 NE1/4 NE1/4 OF SD SEC 11; TH N 89 DEG 40' W, ALONG THE NORTH BNDRY OF SD S1/2 NE1/4



NE1/4 NE1/4, 508.2', TO A PNT ON A CIRCULAR CURVE TO THE LEFT, RADIUS 860.9', AND AT WHICH PNT A LINE TANGENT TO SD CURVE BEARS S 49 DEG 01' E; TH ALONG SD CIRCULAR CURVE THROUGH A CENTRAL ANGLE 23 DEG 26', 352.1' TO THE PNT OF COMPOUND CURVE, SD PNT BEING THE BEG OF A CIRCULAR CURVE TO THE LEFT, RADIUS 1815.9', AND AT WHICH PNT A LINE TANGENT TO SD CURVE BEARS S 72 DEG 27' E; TH ALONG SD CIRCULAR CURVE THROUGH A CENTRAL ANGLE 6 DEG 39', 210.7' TO A PNT ON THE EAST BNDRY OF SD SEC 11, FROM WHICH THE NORTHEAST COR THEREOF BEARS N 0 DEG 24' E, 544'; TH N 0 DEG 24' E, ALONG THE EAST BNDRY OF SD SEC 11, 214', TO THE POB.

Recitals

WHEREAS, a Memorandum of Agreement was entered into on the 25th day of April, 1983, between the City of Cheyenne, the County of Laramie, the Cheyenne Board of Public Utilities, and the South Cheyenne Water and Sewer District for implementation of the findings of the 201 Facilities Plan Final Report for the City of Cheyenne, the South Cheyenne Water and Sewer District, and Laramie County ("201 Agreement"); and

WHEREAS, Section 4.0 of the 201 Agreement contains provisions which govern development that is not consistent with the Facility Plan which was adopted in the 201 Agreement; and

WHEREAS, Section 4.0 provides criteria for the approval or disapproval of development that is not consistent with the Facility Plan which was adopted in the 201 Agreement; and

WHEREAS, Section 4.0 of the 201 Agreement provides as follows:

"Section 4.0 Exceptions for Development that is not consistent with the Proposed Facility Plan:

4.1 Exceptions can be granted for the following reasons:

(a) The proposed exception conforms with the criteria for exceptions in The City of Cheyenne Annexation Policies;

(b) The proposed exception can be shown not to be detrimental to the public health, safety and welfare;

(c) The exception will alleviate a clearly demonstrable hardship and compliance with the Facility Plan will exacerbate this hardship. A hardship will be determined based upon a cost/effectiveness study of sewer service provision to the property seeking the exception;

(d) The exception demonstrates substantial compliance with the proposed Facility Plan."

WHEREAS, an exception to the facility plan which was adopted in the 201 Agreement may be granted under the criteria set forth in Section 4.0 only upon the joint approval of said exception by the Governing Body of the City of Cheyenne and by the Board of County Commissioners of Laramie, County, Wyoming; and

WHEREAS, Profile submitted an application to the Cheyenne-Laramie County Health Department for a permit to install a small wastewater system for sanitary sewer waste being generated from a light industrial facility located on Parcel B, described above, commonly described as 4121 West 5th Street, Cheyenne, Wyoming; and

WHEREAS, Profile has represented that the property may be taken by the Wyoming Department of Transportation in the foreseeable future in connection with the re-design and re-construction of the Interstate 25/Interstate 80 interchange; and

WHEREAS, Profile has asserted that it would be a hardship to connect the above-referenced property to the City of Cheyenne Sanitary Sewer System; and

WHEREAS, the Cheyenne-Laramie County Health Department denied the application filed by Profile for a permit to construct a small wastewater treatment system to serve the property for the reasons: (1) that the property is located within the 201 sewerable boundary and is contiguous to the corporate limits of the City of Cheyenne; and (2) the proposed wastewater treatment system is not in compliance with the 201 Facilities Plan or the 201 Agreement; and

WHEREAS, Profile has appealed the decision of the Health Department to deny its application for a permit to construct a small wastewater system under Section 4.1(c) of the 201 Agreement; and

WHEREAS, the City of Cheyenne Planning Commission, at its February 6, 2012 meeting by a vote 5-1, recommended that Profile's application for an exception under Section 4.01(c) of the 201 Agreement be granted subject to the condition that the exception be limited to a period of two (2) years.

Intent of the Parties. It is the intent of the parties to this Agreement that Profile will file a petition for the annexation of Parcels B and C and the adjacent Interstate 25 right-of-way to the City of Cheyenne in exchange for the grant of an exception to the 201 Agreement which would authorize Profile to install and operate a small wastewater system for sanitary sewer waste being generated from a light industrial facility which has been constructed on Parcel B, described above. The City's approval of the issuance of an exception to the 201 Agreement shall become effective upon the filing of a complete petition for the annexation of Parcels B and C.

Effectiveness of Agreement; Amendment. This Agreement shall not become effective until it has been fully executed by the parties following approval by the City's governing body. This Agreement may be amended only pursuant to a written instrument executed by the parties with the same formalities as necessary for the approval of this Agreement.

Immediate Annexation of Parcels B and C: Profile agrees to as soon as reasonably possible file a complete application to annex Parcels B and C, as described above, and the adjacent Interstate 25 right-of-way to the City of Cheyenne. A diagram showing the approximate size and location of the annexation area is attached to this Agreement as Exhibit A. Profile shall thereafter act as agent for the annexation and shall cooperate in good faith to complete the annexation process in accordance with state law and the Cheyenne City Code. Profile shall refrain from any activity that may inhibit annexation of Parcels B and C. Profile shall be responsible for all costs associated with the completion, filing and processing of its petition for annexation of Parcels B and C. The City's approval of the issuance of an exception to the 201 Agreement shall become effective upon the filing of a complete petition for the annexation of Parcels B and C.

Duration of City's consent to issuance of an exception to the 201 Agreement: The City's consent to the issuance of an exception to the 201 Agreement for the light industrial facility located on Parcel B shall remain in full force and effect for a period of ten (10) years or until the Wyoming Department of Transportation completes the re-alignment and re-construction of the I-80/I-25 interchange, whichever event sooner occurs. In the event the City's consent expires before the re-alignment and re-construction of the I-80/I-25 interchange, Profile shall have the right to seek a further extension of the City's consent to the issuance of an exception to the 201 Agreement which shall not be unreasonably withheld.

Future Annexation of Parcel A: Profile agrees that it will not subdivide Parcel A, as described above, and will not sell, convey, or otherwise voluntarily or involuntarily dispose of any interest in Parcel A, and will not undertake any development action, as defined in Chapter 1.16 of the Cheyenne City Code, with respect to Parcel A, in any manner, until such time as Profile has filed a complete application for the annexation of Parcel A, and adjacent rights-of-way to the City of Cheyenne. Profile shall thereafter act as agent for the annexation and shall cooperate in good faith to complete the annexation process in accordance with state law and the Cheyenne City Code. Profile shall refrain from any activity that may inhibit annexation of Parcel A. Profile shall be responsible for all costs associated with the completion, filing and processing of its petition for annexation of Parcel A. Profile agrees to execute the Consent to Annexation of Parcel A in the form attached to this Agreement as Exhibit B. Upon annexation, Profile shall immediately obtain sewer service from the City through connection to the sanitary sewer system operated by the City of Cheyenne Board of Public Utilities for any building on Parcel A which shall remain capable of being used or occupied at the time of annexation. It is the intent of the parties that annexation, in and of itself, shall not trigger any requirements for improvements other than the cost of connecting improvements on Parcel A to the City's sanitary sewer system. Any new development actions, as defined in Chapter 1.16 of the Cheyenne City Code, will be reviewed under City rules, regulations and standards in existence at the time of development. It is mutually understood and agreed that any new development actions on Parcel A may trigger requirements for the installation of infrastructure improvements other than connection to the City's sanitary sewer system.

Consent to Annexation as Covenant Running with the Land: The consents to annexation, and related obligations stated in this Agreement, shall constitute a binding covenant which shall run with the land and shall be binding upon Profile's principals, members, owners, and related parties, and upon any and all mortgagees, grantees, successors in interest, assigns, and all other persons or entities who may now have or hereafter acquire any ownership interest in Parcels A, B, or C, as described above. This Agreement and the Consent to Annexation, in the form attached hereto as Exhibit B, shall be filed in the Office of the Laramie County Clerk within sixty (60) days after the execution of this Agreement. The Consent to Annexation shall be included in the chain of title for all land described as Parcel A above and shall be inserted into each and every deed, assignment, mortgage, or other instrument which conveys or disposes of any interest in Parcel A. Profile further covenants and agrees with the City that the terms and conditions of this Agreement shall be incorporated into every real estate purchase agreement, deed, conveyance, assignment, or other instrument which relate to the conveyance or disposition of any interest or portion of Parcel A.

Amendments. Any changes, modifications, revisions or amendments to this Agreement that are mutually agreed upon in writing by the parties hereto shall be incorporated by written instrument, signed by all parties to this Agreement.

Notices. All notices arising out of, or from, the provisions of this Agreement shall be in writing and given to the parties at the addresses provided in the first paragraph of this Agreement, either by regular U.S. mail or delivery in person. Delivery shall be deemed to have occurred 3 days following deposit in the U.S. mail or upon delivery in person.

Remedies and Enforcement. In the event Profile defaults or is deficient in the performance of any obligation of this Agreement, the City shall have the right to exercise all remedies provided by law or in equity. In particular the City shall have the right to seek the revocation of any 201 exception which is granted pursuant to this Development Agreement and official actions of the City's governing body related thereto.

Severability. Should any portion of this Agreement be judicially determined to be illegal or unenforceable, the remainder of the Agreement shall continue in full force and effect as if the illegal or unenforceable term was omitted.

Governmental Immunity. The City does not waive governmental immunity by entering into this general agreement and specifically retains all immunities and defenses available pursuant to Wyo. Stat, § 1-39-101 *et seq.* and other applicable state and federal laws.

Third Party Beneficiary Rights. The parties do not intend to create in any other individual or entity the status of third party beneficiary, and this Agreement shall not be construed so as to create such status. The rights, duties and obligations contained in this Agreement shall operate only between and for the benefit of the parties to this Agreement.

Entirety of the Agreement. This Agreement, consisting of six (6) pages, and Exhibits A and B, represents the entire and integrated Agreement between the parties and supersedes all prior negotiations and agreements, whether written or oral.

THIS SPACE LEFT INTENTIONALLY BLANK

IN WITNESS WHEREOF, the parties hereto have executed this agreement on the date first above written.



CITY OF CHEYENNE WYOMING

BY:

Richard L. Kaysen
Richard L. Kaysen, Mayor

(SEAL)

ATTEST:

Carol Intlekofer
Carol Intlekofer, City Clerk

State of Wyoming)
) ss.
County of Laramie)

The foregoing instrument was acknowledged before me this 27th day of MARCH
20 12, by Richard L. Kaysen & Carol Intlekofer

Witness my hand and official seal.



Wendy J. Kinkade
Notary Public

PROFILE PROPERTIES, LLC

BY: Scot S. Cook

Scot S. Cook

ATTEST:

N/A

The foregoing instrument was acknowledged before me this 27th day of march
20 12, by Scot S. Cook

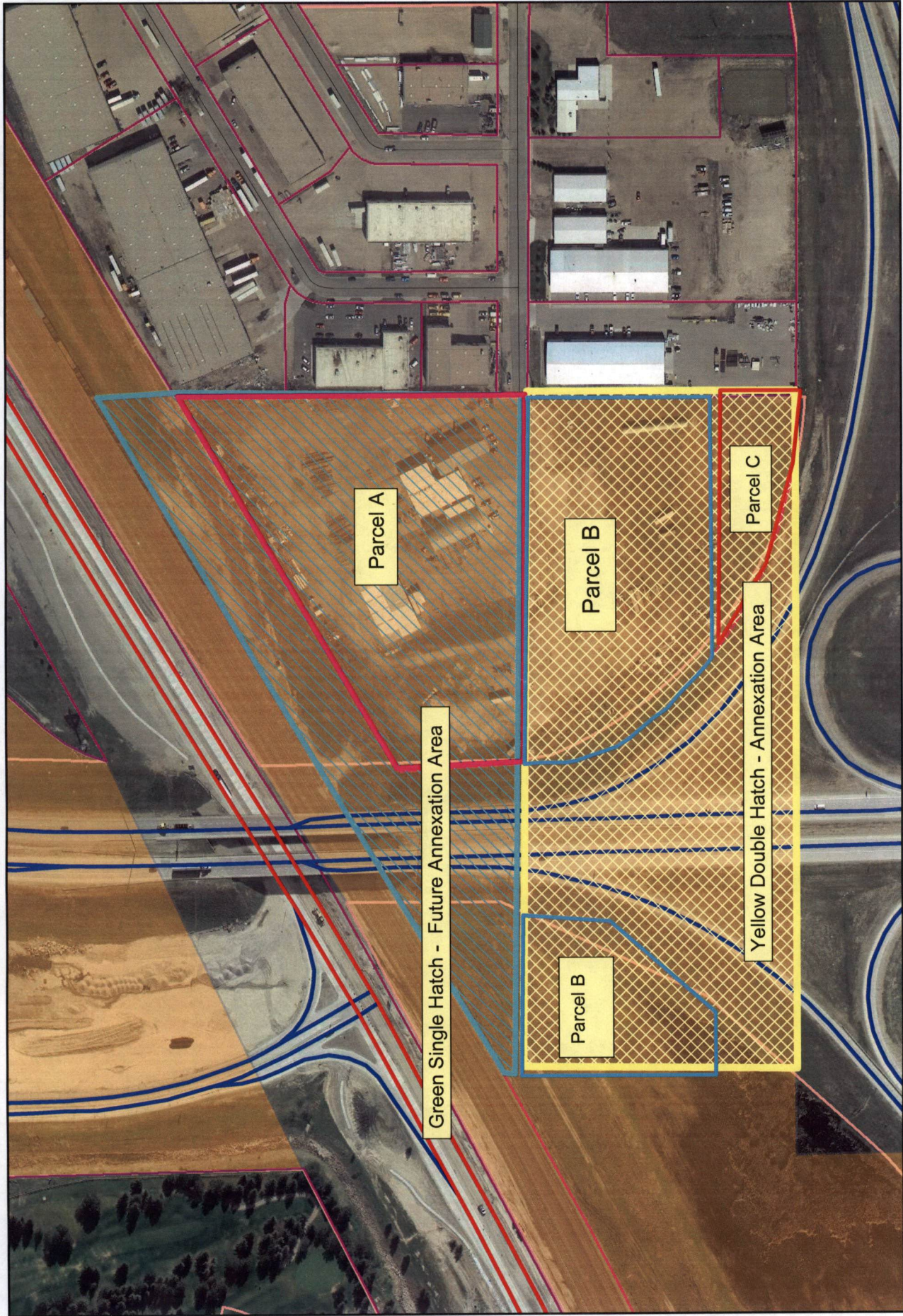
Witness my hand and official seal.



Marilyn Sutherland
Notary Public



Exhibit A



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.



EXHIBIT B

KNOW ALL MEN BY THESE PRESENTS

That the undersigned, being the owner of the following described property situated in Laramie County, Wyoming, to wit: A portion of the SE $\frac{1}{4}$ SE $\frac{1}{4}$ of Section 2, Township 13 North, Range 67 West, 6th P.M., lying south of the south right-of-way of the Union Pacific Railroad Road, described as:

13-67: POR SE $\frac{1}{4}$ SE $\frac{1}{4}$ SEC 2, LYING SOUTH OF SOUTH RW OF UPRR, DESC AS: BEG AT SOUTHEAST COR OF SEC 2; TH NORTH ALONG EAST LINE OF SEC 2, 649.6' TO A PNT ON SOUTH R/W LINE OF UPRR; TH S 58 DEG 28' W, ALONG SD RW LINE, 1231.8' TO AN INTERSECTION WITH SOUTH LINE OF SD SEC 2; TH S 89 DEG 41' E, ALONG SOUTH LINE OF SD SEC 2, 1049.9' TO THE POB; LESS (1 AC) A POR TO THE ST OF WY.

in consideration of the mutual promises encompassed within the Development Agreement (AGREEMENT) recorded in book _____ and pages _____ with the Laramie County Clerk of Deeds do hereby consent to the annexation of the above property to the City of Cheyenne, and do hereby covenant and agree to do and execute such further acts, conveyances and assurances as may reasonably be required by the City of Cheyenne for full performance of the AGREEMENT.

This consent to annexation shall constitute a covenant appurtenant to the above-described property and shall bind the undersigned, their heirs, legal representatives and assigns to the full performance thereof.

Dated _____.

State of Wyoming)
) ss.
County of Laramie)

The foregoing instrument was acknowledged before me this _____ day of _____, 20____, by _____.

Witness my hand and official seal.

Notary Public


RECORDED 3/29/2012 AT 10:45 AM REC# 587892 BK# 2267 PG# 864
DEBRA K. LATHROP, CLERK OF LARAMIE COUNTY, WY PAGE 8 OF 8

KNOW ALL MEN BY THESE PRESENTS

That the undersigned, being the owner of the following described property situated in Laramie County, Wyoming, to wit: A portion of the SE $\frac{1}{4}$ SE $\frac{1}{4}$ of Section 2, Township 13 North, Range 67 West, 6th P.M., lying south of the south right-of-way of the Union Pacific Railroad Road, described as:

13-67: POR SE $\frac{1}{4}$ SE $\frac{1}{4}$ SEC 2, LYING SOUTH OF SOUTH RW OF UPRR, DESC AS: BEG AT SOUTHEAST COR OF SEC 2; TH NORTH ALONG EAST LINE OF SEC 2, 649.6' TO A PNT ON SOUTH R/W LINE OF UPRR; TH S 58 DEG 28' W, ALONG SD RW LINE, 1231.8' TO AN INTERSECTION WITH SOUTH LINE OF SD SEC 2; TH S 89 DEG 41' E, ALONG SOUTH LINE OF SD SEC 2, 1049.9' TO THE POB; LESS (1 AC) A POR TO THE ST OF WY.

in consideration of the mutual promises encompassed within the Development Agreement (AGREEMENT) recorded in book 2267 and pages 857-864 with the Laramie County Clerk of Deeds do hereby consent to the annexation of the above property to the City of Cheyenne, and do hereby covenant and agree to do and execute such further acts, conveyances and assurances as may reasonably be required by the City of Cheyenne for full performance of the AGREEMENT.

This consent to annexation shall constitute a covenant appurtenant to the above-described property and shall bind the undersigned, their heirs, legal representatives and assigns to the full performance thereof.

Dated 4/3/12.

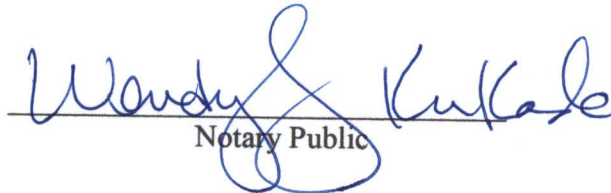


PROFILE PROPERTIES, LLC
BY: Scot S. Cook

State of Wyoming)
) ss.
County of Laramie)

The foregoing instrument was acknowledged before me this 3rd day of April, 2012, by Scot S. Cook.

Witness my hand and official seal.


Notary Public

ENTITLED: "A RESOLUTION GRANTING, WITH CONDITIONS, AN EXCEPTION FOR DEVELOPMENT OF A SMALL WASTEWATER SYSTEM PURSUANT TO THE "201 AGREEMENT" FOR PROPERTY DESCRIBED AS A TRACT OF LAND IN THE N1/2N1/2NE1/4NE1/4 OF SECTION 11, TOWNSHIP 13 NORTH, RANGE 67 WEST, OF THE 6TH P.M., LARAMIE COUNTY, WYOMING, AKA: 4121 WEST 5TH STREET, CHEYENNE, WYOMING, AND AUTHORIZING THE MAYOR AND CITY CLERK TO EXECUTE A DEVELOPMENT AGREEMENT FOR SAID PROPERTY AND FOR ADDITIONAL PROPERTY DESCRIBED AS A TRACT OF LAND IN THE SE1/4 SE1/4 OF SECTION 2, TOWNSHIP 13 NORTH, RANGE 67 WEST, OF THE 6TH P.M., LARAMIE COUNTY, WYOMING."

WHEREAS, a Memorandum of Agreement was entered into on the 25th day of April, 1983, between the City of Cheyenne, the County of Laramie, the Cheyenne Board of Public Utilities, and the South Cheyenne Water and Sewer District for implementation of the findings of the 201 Facilities Plan Final Report for the City of Cheyenne, the South Cheyenne Water and Sewer District, and Laramie County ("201 Agreement"); and

WHEREAS, Section 4.0 of the 201 Agreement contains provisions which govern development that is not consistent with the facility plan which was adopted in the 201 Agreement; and

WHEREAS, Section 4.0 provides criteria for the approval or disapproval of development that is not consistent with the facility plan which was adopted in the 201 Agreement; and

WHEREAS, Section 4.0 of the 201 Agreement provides as follows:

"Section 4.0 Exceptions for Development that is not consistent with the Proposed Facility Plan:

4.1 Exceptions can be granted for the following reasons:

- (a) The proposed exception conforms with the criteria for exceptions in The City of Cheyenne Annexation Policies;
- (b) The proposed exception can be shown not to be detrimental to the public health, safety and welfare;
- (c) The exception will alleviate a clearly demonstrable hardship and compliance with the Facility Plan will exacerbate this hardship. A hardship will be determined based upon a cost/effectiveness study of sewer service provision to the property seeking the exception;
- (d) The exception demonstrates substantial compliance with the proposed Facility Plan."

WHEREAS, an exception to the Facility Plan which was adopted in the 201 Agreement may be granted under the criteria set forth in Section 4.0 only upon the joint approval of said exception by the Governing Body of the City of Cheyenne and by the Board of County Commissioners of Laramie, County, Wyoming; and

WHEREAS, Profile Properties, LLC, a Wyoming limited liability company, submitted an application to the Cheyenne-Laramie County Health Department for a permit to install a small wastewater system for sanitary sewer waste being generated from a light industrial facility located on the above-referenced property which is located within Laramie County and contiguous to the City of Cheyenne, and described as a tract of land in N1/2N1/2NE1/4NE1/4 of Section 11, Township 13 North, Range 67 West, of the 6th P.M., Laramie County, Wyoming, aka: 4121 West 5th Street, Cheyenne, Wyoming; and

WHEREAS, Profile Properties, LLC, has represented that the property may be "taken" by the Wyoming Department of Transportation in the foreseeable future in connection with the re-design and re-construction of the Interstate 25/Interstate 80 interchange; and

WHEREAS, Profile Properties, LLC, has demonstrated that it would be a hardship to connect the above-referenced property to the City of Cheyenne Sanitary Sewer System; and

WHEREAS, the Cheyenne-Laramie County Health Department denied the application filed by Profile Properties, LLC, for a permit to construct a small wastewater treatment system to serve the property for the reasons: (1) that the property is located within the 201 sewerable boundary and is contiguous to the corporate limits of the City of Cheyenne; and (2) the proposed wastewater treatment system is not in compliance with the 201 Facilities Plan or the 201 Agreement; and

WHEREAS, Profile Properties, LLC, is appealing the decision of the Health Department to deny its application for a permit to construct a small wastewater system under Section 4.1(c) of the 201 Agreement; and

WHEREAS, the City of Cheyenne Planning Commission, at its February 6, 2012 meeting, by a vote of 5-1, recommended that the application of Profile Properties, LLC, for an exception under Section 4.1(c) of the 201 Agreement be granted subject to the condition that the exception be limited to a period of two (2) years from the date of approval of this resolution; and

WHEREAS, the City of Cheyenne has considered the proposed exception and determined that Profile Properties, LLC, has demonstrated that it would be a hardship to connect to the City of Cheyenne Sanitary Sewer System; and

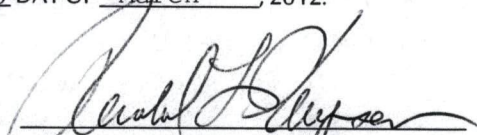
WHEREAS, the City of Cheyenne and Profile Properties, LLC, have entered into negotiations which have resulted in the presentation of a Development Agreement, attached to this Resolution as Exhibit A, under which Profile Properties, LLC, has agreed to certain specified terms and conditions in exchange for the favorable consideration of its application for an exception to the 201 Agreement; and

WHEREAS, the proposed Development Agreement serves the mutual interests of the City and Profile Properties, LLC., and should be approved.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the application of Profile Properties, LLC, for an exception to the 201 Agreement, pursuant to Section 4.1(c) of said 201 Agreement, is hereby granted subject to the condition that Profile Properties, LLC, complies with all terms and conditions of the Development Agreement which is attached hereto as Exhibit A.

IT IS FURTHER RESOLVED that the Mayor and the City Clerk are authorized to execute the attached Development Agreement on behalf of the City of Cheyenne.

PRESENTED, READ AND ADOPTED THIS 26 DAY OF March, 2012.


RICHARD L. KAYSEN, MAYOR

(SEAL)

ATTEST:


CAROL INTLEKOFER, CITY CLERK

OFFICE OF THE CITY CLERK

ACTION AND PROCESSING RECORD

FOR THE GOVERNING BODY OF THE CITY OF CHEYENNE

CONF
#5817

DATE PRESENTED: MARCH 12, 2012

AGENDA ITEM #: 15

ENTITLED: "RESOLUTION - GRANTING, WITH CONDITIONS, AN EXCEPTION FOR DEVELOPMENT OF A SMALL WASTEWATER SYSTEM PURSUANT TO THE '201 AGREEMENT' AND AUTHORIZING THE MAYOR AND CITY CLERK TO EXECUTE A DEVELOPMENT AGREEMENT FOR PROPERTY DESCRIBED AS A TRACT OF LAND IN N1/2N1/2NE1/4NE1/4 OF SECTION 11, TOWNSHIP 13 NORTH, RANGE 67 WEST, OF THE 6TH P.M. (A/K/A 4121 WEST 5TH STREET), CHEYENNE, LARAMIE COUNTY, WYOMING."

SPONSOR: DR. MARK RINNE

COMMITTEE: PUBLIC SERVICES COMMITTEE

Agenda Item #11/2nd Reading/March 26, 2012

that an anticipated reconstruction project expected to involve some of the land may not move forward, affecting the exception and temporary permit for the small wastewater system. Main motion as amended by substitute carried. Voting "yes" -- all members of the governing body present with the exception of Ms. Ash voting "no". Absent: Pierson.

OFFICE OF THE CITY CLERK

ACTION AND PROCESSING RECORD

FOR THE GOVERNING BODY OF THE CITY OF CHEYENNE

DATE PRESENTED: MARCH 12, 2012

AGENDA ITEM #: 15

ENTITLED: "RESOLUTION - GRANTING, WITH CONDITIONS, AN EXCEPTION FOR DEVELOPMENT OF A SMALL WASTEWATER SYSTEM PURSUANT TO THE '201 AGREEMENT' AND AUTHORIZING THE MAYOR AND CITY CLERK TO EXECUTE A DEVELOPMENT AGREEMENT FOR PROPERTY DESCRIBED AS A TRACT OF LAND IN N1/2N1/2NE1/4NE1/4 OF SECTION 11, TOWNSHIP 13 NORTH, RANGE 67 WEST, OF THE 6TH P.M. (A/K/A 4121 WEST 5TH STREET), CHEYENNE, LARAMIE COUNTY, WYOMING."

SPONSOR: DR. MARK RINNE

COMMITTEE: PUBLIC SERVICES COMMITTEE

[CA] Agenda Item #15/1st Reading/March 12, 2012
This item referred to Public Services Committee.

Agenda Item # 11 /2nd Reading/March 26, 2012

Ms. Ash moved to adopt, seconded by Dr. Rinne. Ms. Ash moved to amend by substitute dated as to form March 26, 2012, seconded by Dr. Rinne. Brief history of the agenda item topic and purpose of the proposed substitute were noted. It was advised the applicant has agreed to annex two parcels now and a third parcel in the future in exchange for the exception to '201 agreement' provisions, and that the exception will be in effect for 10 years. Upon inquiry and with no objection raised by City Council members, Mayor Kaysen stated he would open the floor again for comments from the public due to the substitute being proposed. Ray Martin, legal counsel for the applicant, expressed appreciation to staff and governing body members for their willingness to work together to reach a compromise for the best interests of all parties. Motion to amend carried. Voting "yes" -- all members of the governing body present. Comments followed regarding Wyo. Dept. of Transportation's shortage of funding for road projects and concern

CITY OF CHEYENNE – CITY COUNCIL AGENDA ITEM SHEET

DATE OF COUNCIL MEETING: March 12, 2012

TYPE OF DOCUMENT: (☐ ORDINANCE) (☒ RESOLUTION) (☐ PRELIMINARY PLAT/
PRELIM PUD ZONE CHANGE) (☐ LEASE/CONTRACT) (CHANGEORDER/CONTRACT
MODIFICATION) (☐ CONSIDER BID) (APPLICATIONS/LICENSES/PERMITS)
(APPOINTMENTS) (☐ ANNOUNCEMENTS/REPORTS/MOTIONS) (☐ OTHER) _____

SPONSOR: (ORDINANCE OR RESOLUTION) Mark Rinne

EXACT WORDING FOR AGENDA: A RESOLUTION GRANTING, WITH CONDITIONS, AN
EXCEPTION FOR DEVELOPMENT OF A SMALL WASTEWATER SYSTEM PURSUANT TO
THE "201 AGREEMENT" ~~FOR~~ AND AUTHORIZING THE MAYOR AND CITY CLERK TO
EXECUTE A DEVELOPMENT AGREEMENT FOR PROPERTY DESCRIBED AS A TRACT OF
LAND IN N1/2N1/2NE1/4NE1/4 OF SECTION 11, TOWNSHIP 13 NORTH, RANGE 67 WEST,
OF THE 6TH P.M., LARAMIE COUNTY, WYOMING, AKA: 4121 WEST 5TH STREET,
CHEYENNE, WYOMING

(1% Sales Tax/other funding/Grant) N/A

CONTACT PERSON: Jim Flesher PHONE: 637-6286 KEY DEPT: Urban Planning

OTHER AFFECTED CITY DEPT'S: Board of Public Utilities

OTHER GOVT. AGENCIES AFFECTED: Environmental Health

FINANCIAL IMPACT PROPOSED OR CONDITIONS WHICH AFFECT CITY: N/A

CONTRACT TERM: N/A STARTING DATE: N/A

	YES	NO	N/A
Is funding budgeted?	☐	☐	☒
Were Bids called for?	☐	☐	☒
Affected parties notified of Council procedure and dates?	☒	☐	☐
Has bond or other security been arranged?	☐	☐	☒
Has insurance been arranged?	☐	☐	☒
Have legal descriptions been received and checked?	☐	☐	☒
Proposed conditions which affect City?	☐	☒	☐

Agenda Item approved / reviewed by : Risk Mgr (☐) City Attorney (☒) Dept. Head (☒)

Submitted by: Brandon Cammarata Title: Planning and Dev't Director Date: Mar. 7, 2012

UPON PASSAGE OF THE AGENDA ITEM, COPIES SHOULD BE SENT TO:

Environmental Health City Clerk's Office

Development Office Laramie County Planning



A COMMUNITY OF CHOICE

Planning and Development Department
2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd, Planner II
Subject: UDC-22-00267 – WYDOT 201 Agreement Exception Extension
Date: September 23, 2022

The item for consideration is an exception to Cheyenne Water and Sewer District intergovernmental agreement (201 IGA) to implement the 1982 Wastewater Facilities Master Plan. There were questions at the committee meeting regarding the proximity of City utilities and WYDOT's plan for the rebuilding of the interchange.

Staff reached out to the Board of Public Utilities and WYDOT for more information. Documents provided by these agencies are attached to this memo.

Attachments:

1. BOPU map showing location of utilities
2. Memo from WYDOT regarding project steps taken and future plans



Mark Gordon
Governor

WYOMING Department of Transportation

"Providing a safe, high quality, and efficient transportation system"

5300 Bishop Boulevard, Cheyenne, Wyoming 82009-3340



M E M O R A N D U M

TO: Cheyenne City Council

FROM: WYDOT Right of Way Program

DATE: 9/23/2022

SUBJECT: 201 Exemption Extension
Project No.: I806212
Road: I25 & I-80 Interchange
County: Laramie

The Wyoming Department of Transportation has applied for a 201 Exemption Extension to carry forward the agreement between the City and Profile Properties. Much of the same reasoning for the original 201 Exemption still applies to the situation today. WYDOT acquired two of the properties under advanced acquisition from Profile Properties and Fenctrak in 2020. Both properties are required for the new interchange design. WYDOT took over an existing lease on the property located at 4121 W 5th Street. This lease is set to expire on April 30, 2023. A final decision on whether or not to extend the lease has not been made. A short summary of this project status is as follows:

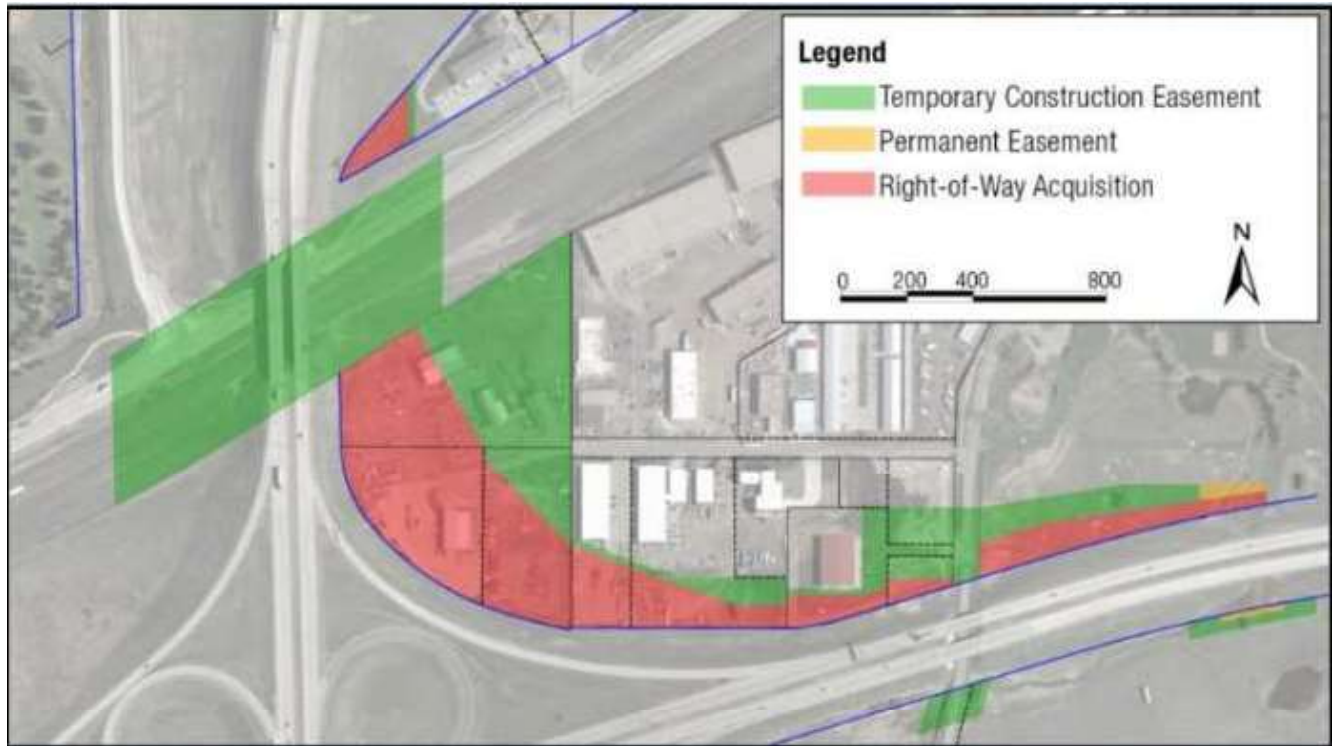
- 2008: WYDOT completed Feasibility Study
- 2017: WYDOT Identifies Two Major Infrastructure Projects
- 2018: WYDOT Completes I-80 Corridor Study
- 2018: WYDOT Completed Reconnaissance Report
- 2019: Design and Environmental Project initiated
- 2020: Preliminary Plans
- 2020: FONSI Issued
- 2021: Grading Plans

WYDOT has been applying for grant funding to complete the project design. Once funding has been secured to finish design work, additional grant funding will need to be secured for construction. The status for this project moving forward is dependent on when we receive grant funding. Our last estimate for construction costs alone ranged between \$309,550,000

and \$371,460,000, with an additional \$23,200,000 being requested in grant funding to complete the design work. Construction work for this project would be completed in phases. The first phase includes building the ramp that would impact the properties in question under this 201 Exemption Extension. Please see the attached exhibits which shows our plan for what will become Highway right of way and the proposed design for the ramp in this location.

One of the State of Wyoming's and WYDOT's goals is to be good stewards of federal and state funds. It would be in the best interest of both WYDOT and the State of Wyoming to continue to use the existing buildings for their current interim use, as best property management practice. The improvements and any infrastructure will be removed once funding has been secured for the next phase of the project. WYDOT is under the opinion that it would be a misuse of federal and state funds to install new infrastructure to buildings that will be demolished as part of the new interchange ramp.

Thank you for your time and attention to this matter. If you have further questions please contact Jonathan Clark at 307-777-4249 or at Jonathan.clark@wyo.gov.



1. THE PLASING PLANS CONTAINED HEREIN SHALL BE USED BY THE CONTRACTOR UNLESS AN ALTERNATE PLASING PLAN IS APPROVED BY THE ENGINEER PRIOR TO THE WORK COMMENCING. THE SELECTION OF A PROPOSED PLASING PLAN BY THE ENGINEER SHALL NOT BE CONSIDERED A COMPENSABLE EVENT.
2. REFER TO MAINTENANCE OF TRAFFIC PLANS AND BRIDGE PLASING PLANS FOR DESCRIPTION OF WORK TO BE PERFORMED IN EACH STEP.